

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4425 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Kyle Hilbert

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 4425

By: Hilbert of the House

and

Logan of the Senate

FLOOR SUBSTITUTE

An Act relating to torts; creating the Good Faith Reporting for Child Protection Act; amending 76 O.S. 2021, Section 31, which relates to immunity from civil liability for volunteers, charitable organizations, and not-for-profit corporations; creating immunity for charitable organizations, volunteers, and employees of charitable organizations for disclosing sexually inappropriate conduct with a minor to other charitable organizations or not-for-profits under certain conditions; creating a presumption of good faith if disclosure was made in compliance with a reporting policy; excluding self-reporting from immunity protections; defining employee; providing effective date for change; providing for noncodification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Good Faith Reporting for Child Protection Act".

SECTION 2. AMENDATORY 76 O.S. 2021, Section 31, is

amended to read as follows:

Section 31. A. Any volunteer shall be immune from liability in a civil action on the basis of any act or omission of the volunteer resulting in damage or injury if:

1. The volunteer was acting in good faith and within the scope of the volunteer's official functions and duties for a charitable organization or not-for-profit corporation; and

2. The damage or injury was not caused by gross negligence or willful and wanton misconduct by the volunteer.

B. In any civil action against a charitable organization or not-for-profit corporation for damages based upon the conduct of a volunteer, the doctrine of respondeat superior shall apply, notwithstanding the immunity granted to the volunteer in subsection A of this section.

C. 1. Any charitable organization, volunteer, or employee of a charitable organization shall be immune from liability in a civil action for any act to disclose sexually inappropriate conduct with a minor by the charitable organization, volunteer, or employee of a charitable organization resulting in breach of contract, damages, or injury if the charitable organization, volunteer, or employee of a charitable organization:

- 1 a. was acting in good faith in the disclosure of sexually
2 inappropriate conduct with a minor to another
3 charitable organization or not-for-profit,
- 4 b. the person who had sexually inappropriate conduct with
5 a minor was or is an employee or volunteer of the
6 disclosing charitable organization,
- 7 c. the disclosure was made in relation to the person's
8 current or prospective employment or volunteering with
9 the disclosed to charitable organization or not-for-
10 profit, and
- 11 d. reported the sexually inappropriate conduct with a
12 minor to a law enforcement agency or the Department of
13 Human Services within seventy-two (72) hours of
14 becoming aware of the sexually inappropriate conduct
15 with a minor.

16 2. A presumption of good faith shall arise if the disclosure
17 provided for in subparagraph a of paragraph 1 of this subsection was
18 made in compliance with a reporting policy adopted by the disclosing
19 charitable organization. The reporting policy shall include, but
20 not be limited to, defining actions or behaviors constituting
21 sexually inappropriate conduct with a minor.

22 3. The immunity provided for in this subsection shall not apply
23 to an individual disclosing his or her own conduct that constitutes
24 sexually inappropriate conduct with a minor.

1 D. Any person who, in good faith and without compensation, or
2 expectation of compensation, donates or loans emergency service
3 equipment to a volunteer shall not be liable for damages resulting
4 from the use of such equipment by the volunteer, except when the
5 donor of the equipment knew or should have known that the equipment
6 was dangerous or faulty in a way which could result in bodily
7 injury, death, or damage to property.

8 ~~D.~~ E. Definitions.

9 1. For the purposes of this section, the term "volunteer" means
10 a person who enters into a service or undertaking of the person's
11 free will without compensation or expectation of compensation in
12 money or other thing of value in order to provide a service, care,
13 assistance, advice, or other benefit; provided, being legally
14 entitled to receive compensation for the service or undertaking
15 performed shall not preclude a person from being considered a
16 volunteer.

17 2. For the purposes of this section, the term "charitable
18 organization" means any benevolent, philanthropic, patriotic,
19 eleemosynary, educational, social, civic, recreational, religious
20 group or association, or any other person performing or purporting
21 to perform acts beneficial to the public.

22 3. For the purposes of this section, the term "not-for-profit
23 corporation" means a corporation formed for a purpose not involving
24 pecuniary gain to its shareholders or members, paying no dividends

1 or other pecuniary remuneration, directly or indirectly, to its
2 shareholders or members as such, and having no capital stock.

3 4. For purposes of this section, the term "employee" means a
4 person who performs ministerial, supervisory, or staff services for
5 a charitable organization and is subject to the organization's
6 governance, direction, or authority in connection with those
7 services, regardless of tax classification. The term "employee"
8 does not include an independent contractor or third-party service
9 provider who retains control over the manner and means of performing
10 services.

11 ~~E.~~ F. The provisions of this section shall not affect the
12 liability that any person may have which arises from the operation
13 of a motor vehicle, watercraft, or aircraft in rendering the
14 service, care, assistance, advice, or other benefit as a volunteer.
15 Provided, however, the liability of any person with a current motor
16 vehicle insurance policy at the required minimum limits who
17 volunteers to provide transportation shall not exceed the limits of
18 such insurance policy, except for gross negligence or willful or
19 wanton conduct committed in providing such transportation. In no
20 event shall the limitation on liability provided under this
21 subsection apply to a person who does not possess a current motor
22 vehicle policy when providing transportation.

23 ~~F.~~ G. The immunity from civil liability provided for by
24 subsection A of this section shall extend only to the actions taken

1 by a person rendering the service, care, assistance, advice, or
2 other benefit as a volunteer, where such actions are agreed upon in
3 advance by all involved persons to be provided on a volunteer basis.
4 This section shall not be construed to confer any immunity to any
5 person for actions taken by the volunteer prior to or after the
6 rendering of the service, care, assistance, advice, or other benefit
7 as a volunteer.

8 ~~G. H.~~ This section shall apply to all civil actions filed after
9 ~~August 25, 1995~~ November 1, 2026.

10 SECTION 3. This act shall become effective November 1, 2026.

12 60-2-17128 AQH 03/10/26